

Line 8

Case Name: *City of Santa Clara v. Bogard Construction, Inc., et al.*

Case No.: 23CV424421

See Order above. (At the request of the moving party, this Motion is **OFF CALENDER.**)

Line 9

Case Name: *Santos Medina v. SF Green Construction Inc., et al.*

Case No.: 24CV453662

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Santos Medina (“Plaintiff”) moves to vacate the June 26, 2025 Order compelling arbitration of the claims against Defendant Solar Mosaic LLC (“Mosaic” or “Defendant”).⁷ Notice of Motion (the “Motion to Vacate”) at 1:24-26 (filed: Jan. 16, 2026). The Motion is made on the grounds: that Plaintiff has discovered new facts that are the basis of new allegations, a new cause of action, and a prayer for new remedies; that Plaintiff has filed a Motion for Leave to file a First Amended Complaint; that Solar Mosaic LLC’s arbitration provision unlawfully prohibits public injunctive relief pursuant to the Consumer Legal Remedies Act and the Unfair Competition Law; that the arbitration provision in whole is expressly null and void due to the unlawful terms. *Id.* at 1:27-2:6.

The Motion to Vacate came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Procedural Posture

Plaintiff filed the Complaint in this civil action on December 10, 2024, arising from the installation of a solar system on his home that was financed through his loan agreement with Mosaic (the “Loan Agreement”). On January 13, 2025, Mosaic moved to compel arbitration under the arbitration provision in the Loan Agreement and Plaintiff filed his Opposition to the motion to compel arbitration on February 6, 2025.

In its Order signed and dated on June 25, 2025, the Court granted Mosaic’s Motion to compel arbitration and ordered that this dispute be resolved in binding arbitration, and that “the action, including any discovery and motions, against Defendant Solar Mosaic LLC only is stayed pending completion of the arbitration[.]” Order at 2:15-18. The Clerk

⁷ While Plaintiff’s Motion occasionally refers to a “June 4, 2025” Order, the record shows that the hearing on Mosaic’s motion to compel arbitration was held on June 4, 2025; the Order granting the motion to compel arbitration was signed and dated by the Court on June 25, 2025; and the Clerk of the Court entered this Order on the case docket *and* served written notice of entry of this Order on the parties on June 26, 2025. For clarity of the record, the Court will hereinafter refer to this Order as the “June 26, 2025 Order.”